



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue, Room 206
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Erin Gates, PE, Staff Engineer *ENG*

DATE: September 3, 2025

SUBJECT: Drainage Easement Agreement between Microsoft Corporation and the City of Cheyenne

Please find attached a Drainage Easement Agreement between Microsoft Corporation and the City of Cheyenne for the storm water detention pond on the Microsoft site location in Lot 1, Block 2, Bison Business Park, 3rd Filing. This easement is for providing and ensuring maintenance of the storm water detention pond at the facility, and provides access within the secured site to and from the storm water detention pond to the City.

There are no financial implications associated with this Drainage Easement Agreement. Your approval of this agreement is respectfully requested.

DRAINAGE EASEMENT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS that, MICROSOFT CORPORATION, a Washington corporation ("**Grantor**"), whose address is One Microsoft Way, Redmond, WA 98052, in consideration of the sum of Ten Dollars (\$10.00) and other good and valuable consideration, receipt and sufficiency of which is hereby acknowledged by and between the parties, does hereby grant to the CITY OF CHEYENNE, a Wyoming municipal corporation ("**City**"), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and to its successors and assigns, a non-exclusive drainage easement, legally described on Exhibit A, attached hereto and incorporated herein ("**Easement**").

RECITALS

WHEREAS, Grantor owns a certain tract of land located in Section 28, Township 13 North, Range 66 West, of the 6th P.M., Laramie County, Wyoming ("**Property**"); and

WHEREAS, the City desires to obtain a drainage easement for the purposes of providing and ensuring the maintenance of a storm water conveyance and/or drainage facility ("**BMP Device**") on and through the Property more particularly described and depicted in Exhibit A ("**Easement Area**");

WHEREAS, Grantor acknowledges that they have the obligation to maintain the drainage facilities within the Easement Area in accordance with this Drainage Easement Agreement ("**Agreement**");

WHEREAS, Grantor is willing to grant such Easement to City on and subject to the terms and conditions of this Agreement; and

WHEREAS, Grantor states it is the lawful owner of the real property described herein, that it has good and lawful right and authority to grant, sell, and convey said property, or any part thereof, and that it warrants the title of said property.

NOW, THEREFORE, in consideration of the foregoing premises and the mutual agreement of the parties hereto, the parties hereby agree as follows:

1. **Drainage Easement.** Grantor executes this Easement in favor of City, its successors and assigns, the right and privilege to ensure on behalf of the public that the facility remains in Good Working Order. Such grant includes all rights and privileges necessary or convenient for the full enjoyment and use thereof for the above-mentioned purposes including, but not limited to, the right of ingress and egress over Grantor's adjoining property in order to exercise the explicit right to remedy any drainage issues on the property.

2. **Security and Access.** City agrees to coordinate with Grantor and third parties designated by Grantor regarding their shared use of the Easement Area. Grantor shall be permitted to construct and maintain a perimeter fence across the Easement Area, but shall provide access to the Easement Area by way of a controlled-access gate, provided that City shall have access to the Easement Area twenty-four (24) hours per day, seven (7) days per week.

a. **Conditions of Access.** In accessing any portion of the Property and performing any work on Property ("**Work**"), City shall: (a) comply with Grantor's reasonable security protocols; (b) comply with all applicable laws; (c) use commercially reasonable efforts not to unreasonably interfere with the operations of Property and Grantor or any tenant thereof, consistent with industry best practices and concerns; (d) pay when due all labor and materialmen's bills arising out of its

Work; (e) keep the Property free and clear of liens resulting from the Work; and (f) obtain all governmental permits or consents necessary to conduct any Work.

3. **Modification.** The Grantor shall be prohibited from altering or placing anything in the Easement Area which shall obstruct or impede the flow of storm water or surface drainage from the Grantor's property. Grantor agrees not to build or to convey to others permission to build any structures or improvements on, over, across, in, through, or under the above-described Easement Area, or to develop or allow the development of the Easement Area in any manner which obstructs or interferes with the function or capacity of the drainage facilities. However, City hereby grants permission for the Grantor to construct and/or install security fencing and other surface improvements to its property, including paved driveways, parking and/or walkways, landscaping, utilities and/or similar improvements, provided said improvements do not then or later interfere with the aforementioned purposes of the Easement Area.

4. **Maintenance and Repair.** Grantor shall maintain the drainage facilities contained within the Easement Area in good working order. "Good working order" is defined as the drainage system operating as designed and constructed in accordance with the as-built construction drawings on file with the City including, but not limited to, ensuring that the structures and Easement Area land surface are free of debris, impoundments, and/or alterations to the drainage flow.

a. **Damage to Property.** If any portion of the Property (including the Easement) is damaged by City or City's agents, City shall promptly repair such damage. If City fails to repair such damage within thirty (30) days following receipt of Grantor's written notice, Grantor may, in its sole discretion, repair the damage (which may include replacement) at City's cost. In that case, City shall reimburse Grantor for all costs and expenses incurred by Grantor in repairing the damage within ten (10) business days following Grantor's demand.

5. **Governmental Immunity.** The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

6. **Indemnity.**

- a. City shall indemnify, defend and hold harmless Grantor, its affiliates, and their respective officers, directors, employees, agents and contractors (collectively, "**Grantor Parties**"), from any liability, loss, damage, claim, lien, cost and expense (including reasonable attorneys' fees and costs), that any Grantor Parties may incur as a result of any third party claim to the extent arising from (i) the use of the Easement Area by City or its partners, managers, members, directors, officers, employees, contractors, consultants, and agents (collectively, "**City Parties**"); (ii) any negligence or willful misconduct of City Parties; (iii) City's breach of any term or condition of this Agreement; and (iv) any use, deposit, release, discharge or disposal of any hazardous substances on or about the Easement Area by City Parties.
- b. Grantor shall indemnify, defend, and hold harmless City and all City Parties from any liability, loss, damage, claim, lien, cost, and expense (including reasonable attorneys' fees and costs), that any City Parties may incur as a result of any third-party claim to

the extent arising from: (i) any negligence or willful misconduct of Grantor Parties; (ii) Grantor's breach of any term or condition of this Agreement; and (iii) any use, deposit, release, discharge, or disposal of any hazardous substances on or about the Easement Area by Grantor Parties.

- c. In no event shall either Grantor or City be liable to the other for any consequential, punitive or special damages. This Section 5 survives termination of this Agreement.

7. **Shared Use.** The Grantor reserves the right to make any use of the Easement Area which is not inconsistent with the rights herein conveyed to the City, and which does not interfere with the aforementioned purposes of the Easement Area. For purposes of this Section, City's compliance with Grantor's security requirements and procedures for entry onto the Easement Area shall not constitute "unreasonable obstruction or interference" with City's rights of ingress and egress under this Agreement.

8. **Easement Area Acceptance.** City accepts the Easement Area and the BMP Device AS-IS, WHERE-IS and WITH ALL FAULTS, and acknowledges that the grant hereunder is subject to all pre-existing easements, covenants, and other matters affecting the Property, including those that may be ascertained by an inspection or survey of the Property.

9. **Miscellaneous.** It is understood and agreed that the enforcement and conditions of this Agreement, and all rights contained herein, shall be strictly reserved to the Grantor and the City. Nothing contained in this Agreement shall give any claim or right whatsoever by any third person or entity. It is the express intention of the Grantor and the City that any such person or entity, other than the Grantor or the City, that receives a service or benefit under this Agreement shall be deemed an incidental third-party beneficiary only. City shall not assign this Agreement without Grantor's prior written consent, not to be unreasonably withheld. This Agreement contains the entire understanding among the parties and supersedes any prior understandings and agreements among them respecting the subject matter addressed in this Agreement. Each of Grantor and City shall execute and deliver such additional documents, instruments, conveyances, and assurances and take such further actions as may be reasonably required to give effect to the transactions contemplated hereby. This Agreement shall run with the land and be binding upon the parties' successors and assigns. If a party brings an action to enforce or interpret this Agreement, the prevailing party in such action shall be entitled to recover reasonable out of pocket costs incurred in connection with such action (including reasonable attorneys' fees, court costs and expert witness fees) from the other party. If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any jurisdiction. The "**Effective Date**" is the date on which both Grantor and City have executed this Agreement, as evidenced by the dates shown under their respective signatures below. This Agreement may be executed in counterparts with the same effect as if the parties had executed one instrument, and each such counterpart shall constitute an original of this Agreement.

SIGNATURES FOLLOW ON NEXT PAGE.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals this _____ day of _____, 2025.

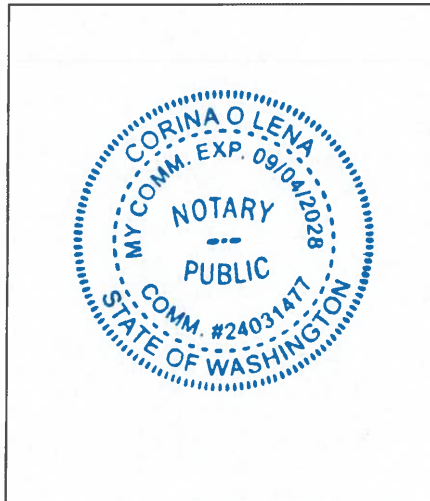
GRANTOR:

MICROSOFT CORPORATION,
a Washington corporation

By: [Signature]
Name: Chris Sander
Title: General Manager

STATE OF WASHINGTON)
) SS.
COUNTY OF KING)

This record was acknowledged before me on 10th day of July, 2025 by Chris Sander as General Manager of Microsoft Corporation.



[Signature]
(Signature of notary public)
Notary public
(Title of office)
My Commission Expires: 9/4/2028
(Date)

CITY OF CHEYENNE:

By: _____
Patrick J. Collins, Mayor

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Subscribed and sworn to before me this _____ day of _____, 2025, by Patrick J. Collins, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

Notary Public

My commission expires: _____

Exhibit A

Easement Area

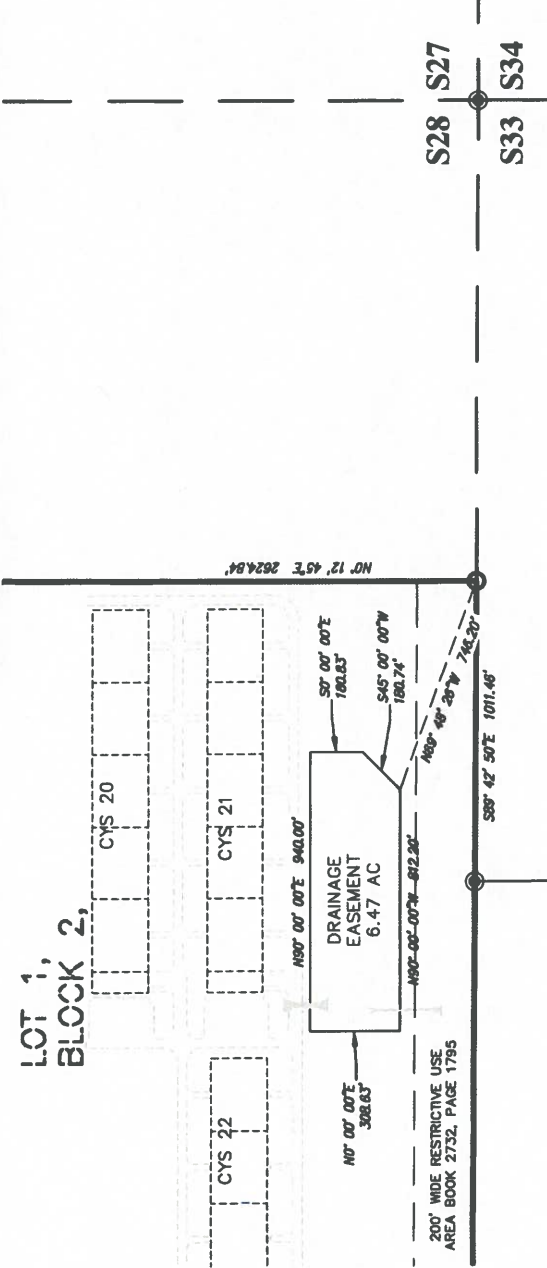
[See attached.]

LEGEND

- FOUND ALUMINUM CAP STAMPED PLS 566
- FOUND ALUMINUM CAP STAMPED "SSS P.L.S. 5910"

CERTIFICATE OF SURVEYOR

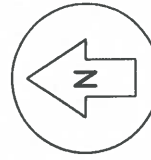
I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



EASEMENT DESCRIPTION

An easement for drainage purposes in a portion of Lot 1, Block 2, Bison Business Park, 3rd Filing, Laramie County, Wyoming, more particularly described as follows;

Commencing at the Southeast corner of said Lot 1, thence N69°48'26"W, a distance of 746.20 feet to the True Point of Beginning, thence N90°00'00"W, a distance of 812.20 feet; thence N0°00'00"E, a distance of 308.63 feet; thence N90°00'00"E, a distance of 940.00 feet; thence S0°00'00"E, a distance of 180.83 feet; thence S45°00'00"W, a distance of 180.74 feet to the point of beginning. Containing 6.47 acres more or less.



Scale: 1" = 500'

Date prepared: MAY, 2024

STEEL SURVEYING SERVICES, LLC
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PLANNING & DEVELOPMENT SPECIALISTS
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REVISED: 5/29/2024
2020265A CYS 19-20 DRAINAGE ESMT.DWG